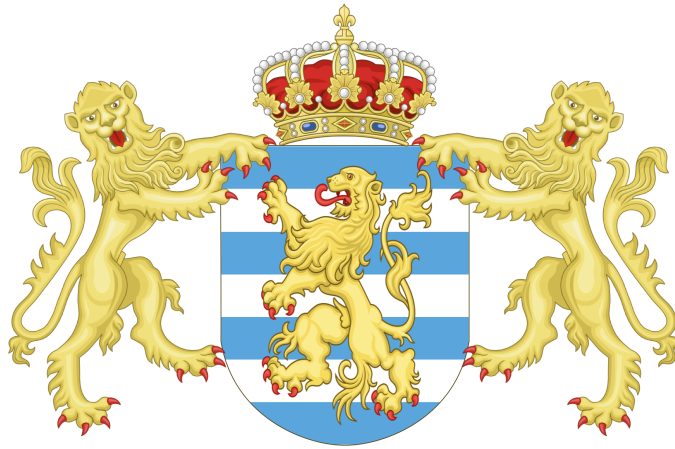




AN ACT

TO

**Provide for the expansion of immigration to and citizenship of the Grand
Duchy of Eniarku and the terms and conditions thereof.**

BE IT ENACTED by the Grand Duke’s most Royal Highness, by and with the advice of His Councillors in this present Council assembled, and by the authority of the same in accordance with the Constitution of the Grand Duchy of Eniarku, as follows:—

SECTION 1. SHORT TITLE.

This Act may be cited as the “Immigration and Citizenship Act of 2024”.

SECTION 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

Sec. 1.	Short title.
Sec. 2.	Table of contents.
Sec. 3.	Definitions.
TITLE I—IMMIGRATION	
Sec. 101.	General passage and transit.
Sec. 102.	Selection system; quotas.
Sec. 103.	Asylum.
Sec. 104.	Qualifications; admission; exclusion.
Sec. 105.	Removal; restrictions.
Sec. 106.	Documentation.
Sec. 107.	Change of status; review of determinations.
TITLE II—NATURALIZATION AND CITIZENSHIP	
Sec. 201.	Nationals and citizens of Eniarku at birth.
Sec. 202.	Naturalization.
Sec. 203.	Revocation of citizenship; restrictions.
Sec. 204.	Documentation.
Sec. 205.	Change of status; review of determinations.
TITLE III—MISCELLANEOUS PROVISIONS	
Sec. 301.	Amendments.
Sec. 302.	Codification in <i>Corpus Juris</i> .

SECTION 3. DEFINITIONS.

- (a) All definitions included in A.S. 2401 §3 are to be construed equally for the purposes of this Act unless otherwise noted.
- (b) “Right of birth” or “birthright” are used to designate the citizenship status of persons who were born within the territory of the State and received the full benefits thereof as a result.

- (c) “Naturalized” or “naturalization” are used to designate the citizenship status or process of persons who were not born within the territory of the State but, via a process prescribed by law, have been granted the full benefits thereof by the State.
- (d) “Citizen” is used to designate those persons who are recognized as a subject or national of the State, either by right of birth or via a process of naturalization.
- (e) “Alien” is used to designate those persons who are not recognized as a citizen of the State, either by right of birth or via a process of naturalization.
- (f) “Refugee” is used to designate those persons who have suffered persecution or reasonably fear that they will suffer persecution due to their race, religion, sexual identity or orientation, economic status, nationality, political views or opinions, or membership in a particular social group in their country of origin.
- (g) “Passport” is used to designate a document or endorsement providing for the permanent grant of entry into, residency in, or exit from the State.
- (h) “Visa” is used to designate a document or endorsement providing for the temporary grant of entry into, residency in, or exit from the State.
- (i) “Immigrant” is used to designate those aliens who are in the process of entering the State but do not possess either a passport or visa, pursuant to §(d)-(e).

TITLE I—IMMIGRATION

SEC. 101. GENERAL PASSAGE AND TRANSIT.

- (a) Persons entering the State from the United States of America or exiting the State to the United States of America by land, sea, or air are permitted to freely transit the border without additional documentation granted by the Government, insofar as they are legal citizens of the State, the United States of America, or both.
- (b) Persons entering the State from a macronation (other than the United States of America) or micronational entity by land, sea, or air are required to obtain a visa granted by the Government providing the terms and conditions of the entrance and produce said visa upon request by a State official.

SEC. 102. SELECTION SYSTEM; QUOTAS.

- (a) The Government shall provide immigrants with a reasonable application and, as necessary, a timely review process to be granted an entry visa.
- (b) The Government may, as necessary, provide for quotas restricting the number of immigrant visas that may be granted.

SEC. 103. ASYLUM.

- (a) Subject to review by the Government, persons meeting the definition of refugee provided by §3(f) of this Act are eligible for asylum protections pursuant to international law, namely the Convention Relating to the Status of Refugees of 1951, as amended.
- (b) Persons who have previously committed or are in the process of committing major, non-political crimes outside of the State are ineligible for asylum protections.
- (c) The Government shall provide refugees with an expedited application and timely review process to be granted asylum.

SEC. 104. QUALIFICATIONS; ADMISSION; EXCLUSION.

- (a) Persons meeting the following qualifications are eligible for admission to the State and the granting of a visa by the Government, subject to review:
 - (i) The person has not previously committed and is not in the process of committing a major crime in the country of origin;
 - (ii) The person has not previously committed and is not in the process of committing a major crime in the State; and,
 - (iii) The purpose of the person's entry and transit is reasonable.
- (b) Persons not meeting the foregoing qualifications in §§(a) may be excluded from admission to the State and denied a visa by the Government, subject to review.
- (c) The Government may, as necessary, modify the qualifications provided for in §§(a) through other public laws and without amending this Act.

SEC. 105. REMOVAL; RESTRICTIONS.

- (a) Persons who are admitted to the State and granted a visa by the Government and are discovered by State officials to have subsequently committed a major crime or to be in the process of committing a major crime are subject to prosecution pursuant to applicable law, immediate removal from the State, and revocation of any previously granted status under this Act.
- (b) Persons who have been removed from the State under §§(a) are ineligible for reentry for a period of no less than five years.
- (c) Non-citizen immigrants, irrespective of registration status, are ineligible to hold Government office or appointment.

SEC. 106. DOCUMENTATION.

- (a) The Government may provide for, modify, or declare invalid various forms of immigration documentation at any time through other public laws and without amending this Act.
- (b) Forms of immigration documentation are granted based on the purpose and duration of a person's travel, as follows:
 - (i) Diplomatic officials, non-military foreign government officials, and employees of designated international or intermicronational organizations stationed in the State for 90 or more days are granted A-1 visas;
 - (ii) Diplomatic officials, non-military foreign government officials, and employees of designated international or intermicronational organizations stationed in the State for less than 90 days are granted A-2 visas;
 - (iii) Foreign military officials and employees stationed in the State for 90 or more days are granted M-9 visas;
 - (iv) Foreign military officials and employees stationed in the State for less than 90 days are granted M-3 visas;
 - (v) Non-government and non-military persons remaining in the State for 90 or more days are granted P-1 visas; and,
 - (vi) Non-government and non-military persons remaining in the State for less than 90 days are granted N-2 visas.
 - (vii) Approved asylum applicants are granted R-7 visas.

- (c) A-1, M-9, and P-1 visas shall be issued with a set authorization period not to exceed 180 days per renewal, and renewal requests shall be submitted no less than 21 days prior to the expiration of this authorization period.
- (d) A-2, M-3, and N-2 visas are to be automatically issued with 90-day authorization periods, and change-of-status requests to be moved to an A-1, M-9, or P-1 visa shall be submitted no less than 21 days prior to the expiration of the 90-day authorization period.
- (e) R-7 visas are to be automatically issued with 60-day authorizations periods, and are to be reviewed by the Government on a rolling basis.
- (f) The Government shall maintain a database of all registered immigrants and their statuses.

SEC. 107. CHANGE OF STATUS; REVIEW OF DETERMINATIONS.

- (a) The Government shall provide statused immigrants with a reasonable application and, as necessary, a timely review process to be granted a change of status.
- (b) The Crown Council of Appeal is to serve as the review body for immigration and change-of-status applications and petitions, as well as any and all disputes arising under any provision of this Title.
- (c) Decisions rendered by the Crown Council of Appeal pursuant to §§(a) are final and not subject to review.

TITLE II—NATIONALITY AND CITIZENSHIP

SEC. 201. NATIONALS AND CITIZENS OF ENIARKU AT BIRTH.

- (a) Persons born in any territory currently administered by the State, or born in any territory administered by a previous incarnation of the State since 29 May 2009, are to be considered Eniarkian nationals and full citizens of the State for the purposes of the Constitution, this Act, and all other public laws.
- (b) Persons born abroad to at least one citizen parent are to be considered Eniarkian nationals and full citizens of the State for the purposes of the Constitution, this Act, and all other public laws.

SEC. 202. NATURALIZATION.

- (a) The Government maintains the authority to naturalize persons as citizens of the State, and the application of this authority shall not be denied or abridged because of race, religion, sexual identity or orientation, economic status, political views or opinions, or membership in a particular social group.
- (b) Persons meeting the following qualifications are eligible for naturalization and the granting of citizenship by the Government, subject to review:
 - (i) The person has demonstrated, via an examination, a knowledge and understanding of the English language, including an ability to read, write, and speak words of ordinary usage thereof;
 - (ii) The person has demonstrated, via an examination, a knowledge and understanding of the fundamentals of the history, principles, and government of the State;

- (iii) The person has demonstrated, via either an interview or review of their personal records, outstanding moral character;
- (iv) The person has attested, via oath and affidavit, that any foreign micronational citizenship status would not conflict with the citizenship status conferred by the State; and, either:
 - (1) The person has maintained permanent residency within the territory of the State as a registered immigrant pursuant to §104 of this Act, and has maintained documentation to that effect pursuant to §106 of this Act, for a period of no less than 180 days; or,
 - (2) The person has maintained permanent residency within, or citizenship status granted by, a micronation with which the State maintains diplomatic relations, for a period of no less than 180 days.
- (c) Persons who have already been granted visas pursuant to §103-107 of this Act are eligible for expedited consideration of naturalization applications.
- (d) Persons who, in the determination of the staff of the Armed Forces, Council of State, or the Sovereign, have made, or are in the process of making, extraordinary contributions to the national security of the State are eligible for expedited consideration of naturalization applications, without regard to the residency requirements provided for by §§(iv), the approved number of which shall not exceed five in any fiscal year.
- (e) The Sovereign reserves the right and authority to naturalize eligible persons via expedited means through appropriate public laws.

SEC. 203. REVOCATION OF CITIZENSHIP; RESTRICTIONS.

- (a) Persons who are citizens of the State pursuant to §201 of this Act are not subject to the foregoing revocation of citizenship provisions provided for by this section.
- (b) Persons who are granted naturalized citizenship status by the Government pursuant to §202 of this Act, irrespective of their physical presence within the territory of the State, are fully subject to the laws and regulations thereof and, following a valid prosecution by the Government of a violation of the same laws or regulations, are subject to the revocation of any previously granted status under this Act and, where applicable, immediate removal from the State.
- (c) Persons who have been denaturalized and, where applicable, removed from the State under §§(b) shall be permanently ineligible for future citizenship status.

SEC. 204. DOCUMENTATION.

- (a) The Government may provide for, modify, or declare invalid various forms of citizenship documentation at any time through other public laws and without amending this Act.
- (b) Forms of citizenship documentation are granted based on the type of citizenship and, where applicable, the purpose of a person's travel, as follows:
 - (i) All citizens, regardless of status, are issued a Certificate of Citizenship;
 - (ii) Citizens are issued Class C ("standard") passports;
 - (iii) Military officials and non-diplomatic Government employees are issued Class B ("service") passports; and,

- (iv) Diplomatic officials and, subject to review by the Sovereign, members of the Royal Household, are issued Class A (“diplomatic”) passports.
- (c) All passports provided for by §§(b)(ii)-(iv) shall be renewed biennially.
- (d) The format and design of the Certificate of Citizenship provided for by §§(b)(i) and of the passports provided for by §§(b)(ii)-(iv) may be prescribed, modified, or altered by the Government without the issuance of other public laws and without amending this Act.
- (e) The Government shall maintain a database of all registered citizens and their statuses.

SEC. 205. CHANGE OF STATUS; REVIEW OF DETERMINATIONS.

- (a) Citizens may, via an affidavit declaring themselves ineligible for future citizenship status, renounce their citizenship status.
- (b) The Government shall provide citizens with a reasonable application and, as necessary, a timely review process to be granted a change of status.
- (c) The Crown Council of Appeal is to serve as the review body for citizenship and change-of-status applications and petitions, as well as any and all disputes arising under any provision of this Title.
- (d) Decisions rendered by the Crown Council of Appeal pursuant to §§(a) are final and not subject to review.

TITLE III—MISCELLANEOUS PROVISIONS

SEC. 301. AMENDMENTS.

- (a) Any section or provision of this Act may be amended, modified, altered, or repealed, in part or in its entirety, at any time by the Council of State as chaired by The Sovereign.
- (b) Any section or provision of this Act that is amended, modified, altered, or repealed, in part or in its entirety, pursuant to §§(a), shall be appropriately marked by strike-through text.

SEC. 302. CODIFICATION IN *CORPUS JURIS*.

- (a) Pursuant to A.S. 2401 §202(a), the entirety of this Act should be codified under sub-units of Title 9 of the *Corpus Juris* by default.
- (b) Pursuant to A.S. 2401 §202(c)-(d), the Council of State reserves the right to codify particular provisions of this Act under other Titles of the *Corpus Juris* in a manner that may be provided for by law.
- (c) Pursuant to A.S. 2401 §301, the Council of State reserves the right to codify (or re-codify) particular provisions of this Act in the *Corpus Juris* as amended, modified, altered, or repealed, in a manner that may be provided for by law.

BY AND UNDER THE SEAL OF THE CROWN-IN-COUNCIL, SO ENACTED THIS
TWENTY-SIXTH DAY OF SEPTEMBER, TWO THOUSAND AND TWENTY-FOUR.

